

PCU334768 LUCINDA TERRELL and Estate of JACK TERRELL, by and through its successor in interest et al vs. FERREIRA CONSTRUCTION COMPANY, INC. et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-22

Motion: Defendant Ferreira Power West, LLC's Motions for Protective Orders as to (1) Special Interrogatories and (2) Requests for Production; Plaintiff's Motion to Compel (3) Special Interrogatories and (4) Requests for Production

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Re: LUCINDA TERRELL and Estate of JACK TERRELL, by and through its successor in interest et al vs. FERREIRA CONSTRUCTION COMPANY, INC. et al

Case No.: PCU334768

Date: September 22 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant Ferreira Power West, LLC's Motions for Protective Orders as to (1) Special Interrogatories and (2) Requests for Production; Plaintiff's Motion to Compel (3) Special Interrogatories and (4) Requests for Production

Tentative Ruling:

(1) and (2): To grant the motion in part and enter a protective order that limits any response to Defendant FPW only and reasonably calculated to lead to admissible evidence as to Defendant Lee's negligence;

(3) To grant the motion in part as to No. 16 and order a further response no later than fifteen (15) days from the date of this hearing; to deny the remainder of the motion; to deny the request for sanctions;

(4) To grant the motion in part as to Nos. 9 and 12 and order a further response no later than fifteen (15) days from the date of this hearing; to deny the remainder of the motion to deny the request for sanctions;

Facts Common to (1), (2), (3) and (4)

This is a vehicle accident case. On February 9, 2026, Decedent Jack Terrell was driving on Highway 190 with his wife, Plaintiff Lucinda Terrell, and was engaged in a head-on collision with Defendant Carter Lee, who was traveling in the

opposite direction. Decedent Jack Terrell was killed.

Plaintiff commenced suit on May 8, 2026, with a complaint asserting a wrongful death claim and a negligence claim. The complaint names Defendant Lee as well as Defendants Ferreira Construction Company, Inc., Ferreira Power West LLC, and Ferreira Coastal Construction Company, Inc.

On August 17, 2026, Plaintiff filed a dismissal of this action as to Defendants Ferreira Construction Company, Inc. and Ferreira Coastal Construction Company, Inc.

As such, Plaintiff's claims for wrongful death and negligence are asserted against Defendant Lee and Defendant Ferreira Power West LLC ("FPW").

Specifically, the complaint alleges "Defendant Lee was operating the subject vehicle with the express or implied authority and permission" of Defendant FPW, as an agent or employee of Defendant FPW, and "within the course and scope of his agency or employment..." with Defendant FPW. (Complaint ¶13.) Further, that Defendant FPW "...knew or should have known that Defendant Lee was unfit to operate the subject vehicle and was therefore negligent in hiring, retaining, training, and entrusting the subject vehicle to Defendant Lee." (Complaint ¶13.)

Further that Defendants "...failed to operate their vehicle in a safe or reasonable manner by failing to maintain his lane, operating his vehicle on the wrong side of the road, unsafe lane change, and failure to exercise reasonable care." (Complaint ¶17.)

On June 11, 2026, Plaintiff propounded written discovery via mail to FPW.

On July 8, 2026, Defendant FPW met and conferred prior to filing these motions for protective orders.

On July 24, 2026, Defendant FPW filed motions for protective orders. Defendant seeks an order that it need not answer Special Interrogatories Nos. 3, 9, 12, 13, 14, 15, 16, 17, 18, 20, 23, 24, 25, 26, 27, 33, 34, 36, 37, 38, 39, 40, 42, 43, 49, 50, 56 and 62 and Request for Production of Documents numbers 3, 10, 11, 12, 14, 15, 16, 17, 18, 21, 23, 25, 33, 34, 42, and 43.

On August 25, 2026, Plaintiff filed motions to compel further responses to Special Interrogatory Nos. 3, 12, 13, 14, 15, 16, 20, 23, 24, 25, 27, 33, 34, 36, 37, 38, 40, 42, 48, 49, 50, 56, 59, 62, 64, and 88.

Additionally, Plaintiff seeks to compel further responses to Requests for Production Nos. 3, 6, 7, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 24, 25, 26, 27, 30, 33, and 34.

Defendant FPW, in its motion for protective order, argues that under *Diaz v. Carcamo* (2011) 51 Cal.4th 1148, evidence of an employer's alleged negligence in hiring, retaining, or supervising an employee is irrelevant where the employer has admitted that the employee was acting within the course and scope of employment at the time of the incident. Further, that FPW does not dispute that Defendant Lee was acting within the course and scope of employment with FPW.

In opposition to the protective order motions, Plaintiff argues that *Diaz* does not cut off discovery into these matters, that the requests are limited, via dismissal of the other Defendants, to Defendant FPW and that Plaintiff has not demonstrated good cause necessary to enter a full protective order.

On reply to the oppositions, FPW notes the production of 1. Carter Lee's Time card from January 20, 2026 to January 24, 2026; 2. Carter Lee's Time Card from January 26, 2026 to January 30, 2026; 3. Carter Lee's Time Card from February 2, 2026 to February 6, 2026; 4. New Hire Training Outline; 5. Safety Training; 6. Vehicle Safety Policy Consent; 7. Smith Driving training; 8. Fleet Mobile Phone Use Agreement; 9. Fleet Vehicle Agreement; 10. Carter Lee's motor vehicle record; 11. FMCSA drug and alcohol; 12. Employee information; 13. OSHA safety and health card; 14. First Aid card; and 15. Carter Lee Employment application.

Further, that FPW provided amended verified responses on August 18, 2026 and provided an amended response to Request for Production of Documents numbers 3, 14, and 17.

(1), (2), (3) and (4) - Authority and Analysis

(1) and (2) Protective Order

Under Code of Civil Procedure section 2017.020(a):

"(a) The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040."

Application of Diaz v. Carcamo

In Diaz, supra, 51 Cal.4th, the California Supreme Court stated "an employer's admission of vicarious liability for an employee's negligent driving in the course of employment bars a plaintiff from pursuing a claim for negligent entrustment." (Id. at 1161.) Further, that an employer could be held liable for negligent driving either under vicarious liability or via negligent entrustment of the vehicle to the employee, but not both. (Id. at 1151-1152.) As such, evidence proving a negligent entrustment theory is rendered irrelevant via the vicarious liability admission. (Id. at 1159.)

"If, as here, all of a plaintiff's causes of action depend on a contention that an employee's negligent driving in the scope of employment was a cause of the plaintiff's injuries, and if the defendant-employer offers to admit vicarious liability for its employee's negligent driving, then that offer will 'remove[] from the case' the issue of the employer's liability for any damage caused by its employee's negligent driving, leaving 'no material' to which negligent entrustment evidence can be relevant." (Id. at 1157-1158.) "[A]n employer's admission of vicarious liability for an employee's negligent driving in the course of employment bars a plaintiff from pursuing a claim for negligent entrustment." (Id. at 1161.)

However, the Court recognizes that admissibility is not the standard on discovery matters. "Unless otherwise limited by order of the court in accordance with [the discovery statutes], any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action...." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1012-1013.) "For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement....' [Citation.] Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation.] These rules are applied liberally in favor of discovery [citation], and (contrary to popular belief), fishing expeditions are permissible in some cases." (Id. at 1013.)

Therefore, under the circumstances of Diaz, such evidence of negligent entrustment may be inadmissible at trial, discovery of such evidence is not necessarily barred when reasonably calculated to lead to the discovery of admissible evidence. Nevertheless, the Court evaluates whether, in light of the holding of Diaz, evidence regarding negligent entrustment, training

or supervision is relevant to the vicarious liability claim and might reasonably lead to admissible evidence.

Moreover, the Court notes that Plaintiffs maintain a negligence claim against Defendant Lee and requested information is within the scope of potential discovery and may prove relevant to Plaintiff's negligence claim.

Therefore, the Court will make a blanket order that limiting any such responses to FPW only and limiting the responses to those related to Defendant Lee's negligence.

The Court will apply the protective order, and the reasoning, to the Special Interrogatories and Requests for Production at issue in the motions to compel further responses below.

(3) Special Interrogatories

A party may move to compel further responses to interrogatories if the propounding party deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) Notice of the motion must be provided within 45 days of service of the verified response, or any supplemental verified response, or on or before any specific later date to which the parties have agreed in writing. (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) The moving party must demonstrate a "reasonable and good faith attempt" at an informal resolution of each issue presented. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).)

The Court finds Nos. 3, 6, 7, 9, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 21, 22, 24, 25, 26, 27, 30, 33, and 34 are covered by the reasoning set forth above as to the protective order and would not reasonably lead to the discovery of admissible evidence as to Defendant Lee's negligence or Lee's actions on the date of the incident. These interrogatories center on Defendant FPW's policies and procedures

By contrast, No. 16, seeking technology in the Subject Truck used by Defendant Lee may reasonably lead to the discovery of admissible evidence with respect to Defendant Lee's negligence or lack thereof. As such, the Court will order a further response to No. 16 no later than fifteen (15) days from the date of this hearing.

(4) Requests for Production

Code of Civil Procedure section 2031.210 requires, in response to a request for production, the following:

"(a) The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling."

Code of Civil Procedure section 2031.220 provides "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

Code of Civil Procedure section 2031.230 provides "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

Finally, Code of Civil Procedure section 2031.310(a) permits a party to demand a further response where:

"(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general."

Under subsection (b), the motion must "set forth specific facts showing good cause justifying the discovery sought by the demand." In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the court defined "good cause" as a showing that there "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98.)

The Court denies the motion as to Nos. 3, 6, 7, 10, 11, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 24, 25, 26, 27, 30, 33, and 34 for the same reasons as above, finding responses thereto are not reasonable calculated to lead to the discovery of admissible evidence in light of *Diaz* and Plaintiff's claim for negligence against Defendant Lee.

However, as to 9 and 12, the Court will order a further response, narrowed as follows:

No. 9: Any documents identifying individuals who were witnesses to the incident on February 9, 2026, including contact information.

No. 12: All logs maintained by Defendant Lee during the operation of the subject truck on the day of the incident

Responses are due no later than fifteen (15) days from the date of this hearing.

Sanctions

The Court will deny the request for sanctions here based on mixed results of the motion. (Mattco Valley Forge v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1437.)

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.